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File No.: EXP202317282

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 21, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against BANCO CETELEM, S.A. (hereinafter, the respondent), through the Agreement transcribed below:

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File No.: EXP202317282

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on October 20, 2023. The complaint is directed against BANCO CETELEM, S.A. with NIF A78650348 (hereinafter, CETELEM). The reasons for the complaint are as follows:

The complainant states that CETELEM charges receipts from a loan of an unknown third party to their bank account. They provide several statements of these receipts, as well as several complaints made to CETELEM along with its responses, including a police report. There is a first series of 8 improperly charged receipts to the complainant's account No. ***ACCOUNT.1, between the months of July and September 2022, at a rate of two receipts per month.

On August 8, 2022, the complainant protested to CETELEM regarding the improper use of their bank account, requesting the deletion of the data from their bank account; they also demanded an explanation regarding the acquisition of their data without prior contractual relationship. The complainant also reproached CETELEM for attributing their bank account to a third party without previously requesting the relevant certificate of bank ownership. Additionally, the complainant requested and obtained the refund of the amounts of the improperly charged receipts.

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Again, a year later, in September 2023, CETELEM charged a new receipt from the same debtor to the complainant's account. The complainant submitted a new complaint to CETELEM on 09/21/23; however, CETELEM charged a new receipt again on 10/02/23.

CETELEM responded on 10/20/23 acknowledging receipt of the complaint, and in its response dated 10/23/23, justified its actions by stating that the complainant's account number is the one appearing in the contract.

Simultaneously, the complainant also filed a complaint at the police station in ***LOCALITY.1 on September 18, 2023.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent/ALIAS, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on December 4, 2023, as noted in the acknowledgment of receipt in the file.

THIRD: On December 22, 2023, CETELEM responded to the AEPD's request for information.

CETELEM informed that it deleted the complainant's account data from its database after the first complaint but sold the debt to a third company in June 2023, and that the complainant's bank account number continued to be erroneously listed in the contract.

In CETELEM's view, the responsibility for this new incident would lie with the new company; however, it undertook the actions to resolve the new series of improper charges to the complainant's account. It ultimately concluded that the improper charges in 2022 and 2023 to the complainant's account were due to human errors.

FOURTH: On December 29, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: According to the report obtained from the AXESOR tool, the entity BANCO CETELEM, S.A. is a company established in 1988 with a business volume of 64,855,216 euros in 2022.

LEGAL GROUNDS

I

Competence

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According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation

Initial Processing Without Lawfulness Article 6

In Article 4.1 of the GDPR "Definitions" it is established that:

"For the purposes of this Regulation, the following definitions shall apply:

1) 'personal data': any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 6 Lawfulness of Processing

1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks."

CETELEM has the bank account number of the claimant. Through this identification number, the

account holder is an identifiable natural person, so this data would qualify as personal data, in accordance with Article 4 of the GDPR. CETELEM acknowledges in several of its writings that the bank account number of the claimant appears in the contract of a debtor, and therefore, also in CETELEM's database. For this reason, the receipts of this debtor are charged to the claimant's bank account.

Although CETELEM seems to suggest, in its defense, that there were errors in the initial transcription of the account number, the control digits of bank accounts practically make it impossible to "create" a valid account number by mistake.

This means, as the claimant indicates, that this error is due to CETELEM having incorporated the claimant's bank account into the debtor's contract, without ensuring the ownership of the account. In light of the above, it seems clear that CETELEM initially had the complete bank account number of the claimant, but does not satisfactorily clarify how this information has appeared in a contract of a CETELEM client, given that the claimant has no prior contractual relationship with this entity.

Between July and September 2022, CETELEM improperly charged a series of 8 receipts to the claimant's account no. ***ACCOUNT.1, at the rate of two receipts per month. On August 8, 2022, the claimant protested to CETELEM regarding the improper use of their bank account, requesting the deletion of the data from their bank account.

In September 2023, CETELEM charged a new receipt from the same debtor to the claimant's account. The claimant submitted a new complaint to CETELEM on 21/09/23; however, CETELEM charged another receipt on 2/10/23.

CETELEM had the claimant's account number since 2022, first in its database and in the debt contract, and in 2023, the claimant's account number remains in the debtor's contract, without having rectified or deleted this data.

CETELEM states that it has also transferred the claimant's account to a third company in June 2023 with the sale of the debt.

Thus, CETELEM would have processed personal information of the claimant unlawfully, given that there is no consent, nor is there a legal or contractual obligation.

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that justifies its processing and as a consequence of this processing, the claimant has incurred various charges of a debt on their account for several months in 2022 and 2023, for a debt whose holder was another person.

III

Classification and qualification of the infringement

In accordance with the evidence available at this time, and without prejudice to the outcome of the investigation and based on the known facts, the claimant is identifiable through their bank account number in which CETELEM charges a series of receipts.

The claiming party is not the holder of the debts charged and has no prior contractual relationship with CETELEM. This means that CETELEM is carrying out this processing unlawfully, as it does not have the consent of the data subject.

The known facts could constitute an infringement attributable to CETELEM, of Article 6 of the GDPR (Lawfulness of processing), for processing without a legal basis.

This infringement of the GDPR article is classified in Article 83.5.a) as follows:

"5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For the purposes of the statute of limitations for infringements, the alleged infringement prescribes after three years, in accordance with Article 72.1.b of the LOPDGDD, which qualifies the following conduct as very serious:

"b) The processing of personal data without any of the conditions for lawfulness of processing established in Article 6 of Regulation (EU) 2016/679."

IV

Proposed sanction

This infringement may be sanctioned with an administrative fine of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.

Article 83.2 of the GDPR on general conditions for the imposition of administrative fines establishes that they shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j).

In the present case, it would be appropriate to apply paragraph a) which establishes:

“a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;”

The nature and scope of the processing affects the claimant's property rights as CETELEM makes charges to their bank account.

Article 76.2 of the LOPDGDD, relating to sanctions and corrective measures, establishes the following in letter b):

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

b) The link of the infringer's activity with the carrying out of personal data processing.”

CETELEM is a banking entity, so it has a qualified link in the carrying out of personal data processing, especially regarding the accuracy of its processing.

In light of the above, a fine of €100,000 is proposed.

V

Obligation not fulfilled

Right to erasure 17 1. d) of the GDPR

For its part, Article 17 of the GDPR, relating to the right to erasure, establishes the following in paragraph 1 d):

“The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

(...)

d) the personal data have been processed unlawfully;

(...)”

In September and October 2023, according to the bank receipts provided by the claiming party, CETELEM made new charges to their account. CETELEM acknowledges its failure to comply with the requested right to erasure when it states that the rectification and erasure of the claimant's account took place only in the database, but not in the contract that was the legal basis for the debt.

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The obligation of the data controller to proceed with the deletion without delay of unlawfully processed data is also included in Article 5.1.d) of the GDPR:

1. Personal data shall be:

(...)

d) accurate and, where necessary, kept up to date; all reasonable measures shall be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay ("accuracy");

(...)

2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it ("proactive accountability").

In light of the described facts, it seems clear that CETELEM would have limited itself to deleting the

claimant's data only from the database, but not from the contract. More than 1 year after the claim, CETELEM has not taken all reasonable measures for the deletion and rectification without delay of the claimant's data.

VI

Classification and Qualification of the Infraction

In accordance with the evidence available at the present time and without prejudice to what results from the investigation, it is considered that CETELEM has not effectively deleted the claimant's account number in September and October 2023. According to its own statement, CETELEM would have only proceeded to delete the data from the database, but not from the base contract of the undue charges, despite the exercise of the right to deletion without the consent of the data subject on August 8, 2022.

As a consequence of the indicated unlawful processing, CETELEM has again made unjustified charges from another person to the claimant's account.

The known facts could constitute an infraction, attributable to CETELEM, of Article 17.1.d) of the GDPR, relating to the right to deletion, which establishes the following:

“1) The data subject shall have the right to obtain from the data controller the erasure of personal data concerning him or her without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

(...)

d) the personal data have been unlawfully processed;

(...)”

This infraction of the GDPR article is classified in Article 83.5.b) as follows:

“5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

b) the rights of data subjects under Articles 12 to 22;”

For the purposes of the limitation period for infringements, as it concerns a specific breach of the right to deletion, the alleged infraction is subject to a one-year limitation period, in accordance with Article 74.1.c of the LOPDGDD, which qualifies the following conduct as minor:

“c) Not attending to requests for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, unless the provisions of Article 72.1.k) of this organic law apply.”

VII

Proposal for Sanction

This infraction may be sanctioned with an administrative fine of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount.

Article 83.2 of the GDPR on general conditions for the imposition of administrative fines establishes that they shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j).

In the present case, it would be appropriate to apply paragraphs a) and b) which establish:

“a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damages suffered;”

The effective deletion of the requested processing has far exceeded the one-year period, which is considered an aggravating factor of liability. The failure to comply with the duty of accuracy of the data has forced the claimant to reiterate the deletion of their data, even leading the claimant to file a complaint with the police for fraud.

“b) the intent or negligence in the infringement.”

The deletion of the claimant's account number only in the database, but not in the contract, would point to negligent behavior by CETELEM.

Article 76.2 of the LOPDGDD, relating to sanctions and corrective measures, establishes the following in letter b):

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may

also be taken into account:

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b) The connection of the infringer's activity with the processing of personal data.”

CETEM is a banking entity, therefore it has a qualified connection in the processing of personal data, especially regarding the accuracy of its processing.

In light of the above, a fine of €50,000 is proposed.

VIII Non-compliance obligation

Second unlawful processing Article 6

Article 4.2 of the GDPR "Definitions" states:

“For the purposes of this Regulation, the following definitions shall apply:

2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, comparison or interconnection, restriction, erasure or destruction;”
(...)

In September and October 2023, two new charges were made to the claimant's account for the same debtor, which means that CETEM did not proceed to delete the data of the claimant. CETEM informs the AEAT in the prior proceedings that it has sold the debt to a third company along with the contract that contains the erroneous data of the claimant.

It claims that, as a result of the sale of the debt, the responsibility for the accuracy of the data would now lie with the new company and that, nevertheless, it has taken it upon itself to resolve the new incident of undue charges to the claimant's account.

By transferring the claimant's bank account number to a third party, CETEM performs a new processing of data (“communication by transmission,” Article 4.2 of the GDPR), for which it is necessary to comply again with the conditions of lawfulness provided for in Article 6 of the GDPR:

1. The processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is party or for the application at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the controller is subject; CETEM no longer has lawfulness for the data of the claimant's bank account as of August 2022; it does not have the consent of the data subject and the processing carried out is not necessary for compliance with a legal or contractual obligation.

This is information that it should never have had and whose deletion was requested by the data subject. Since the year prior to this transfer, CETEM has been aware of the lack of lawfulness of this processing, as the claimant had already exercised their right to erasure due to the unlawful processing of their bank account number.

CETEM has improperly retained the requested information and with the sale of the debt, it would have carried out a new processing, communicating the data of the claimant's account to a third company without the conditions of lawfulness provided for in Article 6.1.a) of the GDPR.

IX

Classification and qualification of the infringement

In accordance with the evidence available at this time, and without prejudice to what may result from the investigation, CETEM acknowledges before the AEPD the transfer of the claimant's account number to a third company, which constitutes a new processing carried out with the manifest opposition of the data subject.

The known facts could constitute an infringement attributable to CETEM, of Article 6 of the GDPR (lawfulness of processing), for processing consisting of the transfer of data of the data subject to third

parties without the consent of the data subject:

This infringement of the GDPR article is classified in Article 83.5.a) as follows:

“5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;”
For the purposes of the limitation period for infringements, the infringement attributed is subject to a three-year limitation period, in accordance with Article 72.1.b of the LOPDGDD, which qualifies the following conduct as very serious:

“b) The processing of personal data without any of the conditions for lawfulness of processing established in Article 6 of Regulation (EU) 2016/679.”

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X

Proposal for Sanction

This infringement may be sanctioned with an administrative fine of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.

Article 83.2 of the GDPR establishes that administrative fines will be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). For its part, Article 76 of the LOPDGDD, regarding sanctions and corrective measures, establishes that:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

“b) The link of the infringer's activity with the processing of personal data.”

CETELEM is a banking entity, thus having a qualified link in the processing of personal data, especially regarding the accuracy of its processing, which makes the obtaining of the claimant's bank account number, its maintenance despite the data subject's right to erasure, and finally the transfer to a third party without effective verification of the accuracy of the data particularly serious.

In light of the above, a fine of €100,000 is proposed.

XI

Adoption of Measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It may then be agreed to adopt appropriate organizational measures to avoid future errors like the one that occurred in this case within a period of 3 months, as well as the communication of the erasure of the processing to the company to which CETELEM transferred the claimant's data, due to the sale of the debt.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate

such conduct to initiate further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against BANCO CETELEM, S.A., with NIF A78650348, for two alleged infringements of Article 6 and one infringement of Article 17.1.d) of the GDPR, all classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be two hundred fifty thousand euros (250,000€), one hundred thousand euros (100,000€) for the initial infringement of Article 6, fifty thousand (50,000€) for the infringement of Article 17.1.d), and one hundred thousand euros (100,000€) for the second infringement of Article 6, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to BANCO CETELEM, S.A., with NIF A78650348, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If they do not submit allegations to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as provided in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this

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reduction, the penalty would be established at two hundred thousand euros (€200,000), resolving the procedure with the imposition of this penalty. Similarly, at any time prior to the resolution of this procedure, the voluntary payment of the proposed penalty may be made, which will imply a reduction of 20% of its amount. With the application of this reduction, the penalty would be established at two hundred thousand euros (€200,000) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the penalty is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the penalty would be established at one hundred fifty thousand euros (€150,000).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the penalty.

In the event that the voluntary payment of either of the previously indicated amounts, two hundred thousand euros (€200,000), or one hundred fifty thousand euros (€150,000) is chosen, it must be made effective by depositing it into account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT

Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled. Likewise, the proof of deposit must be sent to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file of actions will occur; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be made against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On May 31, 2024, the respondent has proceeded to pay the penalty in the amount of €150,000, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the penalty and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate penalty.

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2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary

sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of the procedure EXP202317282, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER BANCO CETELEM, S.A. to notify the Agency within 3 months from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to BANCO CETELEM, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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